

Sanjay Chaurasiya v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 August 2025 · 2025:AHC:140706-DB · WRIT - C No. - 26664 of 2025 · **Impugned rejection set aside; remitted to process commercial connection in accordance with law.**

HEADNOTE

A tenant with a subsisting civil injunction had the Executive Engineer's rejection of a temporary electricity connection set aside as covered by Guddi Kesarwani; the matter was remitted so that a commercial connection application would be processed in accordance with law.

FACTUAL SUMMARY

The petitioner has occupied a shop in the landlord's house at E-26 Shantipuram, Phaphamau, Prayagraj since 2008, paying deposit and monthly rent, and runs a registered paneer business. After the landlord interfered with occupation and disconnected electricity, the Civil Judge (Junior Division), East Prayagraj, allowed his 6-C application in Suit No. 371 of 2024 and injuncted the landlord. The Executive Engineer, City Electricity Distribution Khand, Tagore Town, Prayagraj, nonetheless rejected his claim for a temporary electricity connection by order dated 16.07.2025.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

tenant commercial connection

HOLDING

Where a tenant's occupation is protected by a subsisting civil injunction and the claim is covered by Guddi Kesarwani, the Executive Engineer's rejection of a temporary electricity connection is set aside and remitted; if the petitioner applies for a commercial connection, it is to be processed in accordance with law. ¶ 7

PRINCIPLE TAGS

relegate-to-statutory-remedy A tenant with a subsisting civil injunction had the Executive Engineer's rejection of a temporary electricity connection set aside as covered by Guddi Kesarwani; the matter was remitted so that a commercial connection application would be processed in accordance with law. ¶ 7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF ENTITLEMENT TO A COMMERCIAL OR TEMPORARY CONNECTION

Rejection set aside and remitted; a commercial connection is to be processed in accordance with law if the petitioner applies. ¶ 7

NOT DECIDED — WHETHER CLAUSE 7.10 IS AN EFFICACIOUS ALTERNATIVE REMEDY BARRING THE WRIT

Raised as a preliminary objection; the Court proceeded on Guddi Kesarwani and remitted without ruling on maintainability. ¶ 6-7

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Guddi Kesarwani v. State of U.P.</i> Writ-C No. 226 of 2025			5, 7	Referred

